

The parties are expected to strictly comply with their meet-and-confer obligations under the Code of Civil Procedure before any further demurrer is filed. Counsel should also discuss whether targeted informal discovery or document production would satisfy Plaintiff regarding Defendant Rizvi's actual dates of employment and the scope of her personal involvement, if any, in the matters alleged.

14. 9:00 AM CASE NUMBER: C26-00506
CASE NAME: GABRIELLA KOMISAR VS. JESSE WALTERS
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: WALTERS, JESSE
TENTATIVE RULING:

The Court continues the hearing on this motion to October 16, 2026, at 9:00 a.m.

15. 9:00 AM CASE NUMBER: C26-00506
CASE NAME: GABRIELLA KOMISAR VS. JESSE WALTERS
HEARING IN RE: NOTICE OF SPECIAL APPEARANCE BY CHERI DOVE TO JOIN PETITION TO COMPEL ARBITRATION
FILED BY: CASWELL BAY, INC. DBA HILLENDALE HOME CARE
TENTATIVE RULING:

The Court continues the hearing on this motion to October 16, 2026, at 9:00 a.m.

16. 9:00 AM CASE NUMBER: MSC21-00679
CASE NAME: TABERNACLE BAPTIST VS TABERNACLE CHRISTIAN
***HEARING ON MOTION IN RE: ATTORNEYS FEES AND COSTS**
FILED BY: TABERNACLE CHRISTIAN SCHOOLS, INC.
TENTATIVE RULING:

Before the court is Defendant's Motion for Attorneys' Fees and Costs, filed May 7, 2026. The Defendant originally sought \$659,532.50 in attorneys' fees and \$63,579.82 in costs, for a total of \$723,112.32. (Tabernacle Christian Schools, Inc.'s Memorandum of Points in Support of Motion for Attorneys' Fees and Costs, (Motion, page 2:7-8.) The motion is granted with some reductions.

The court grants the Defendant's Request for Judicial Notice as to Exhibits 1-4 only.

The Defendant argues it is entitled to recover reasonable attorneys' fees and costs under the Lease as the prevailing party. Specifically, Defendant argues it is entitled to recover fees under Section 25.04 of the Lease, Section 1021 of the Code of Civil Procedure (CCP), and Section 1717 of the Civil Code. Plaintiff does not oppose this argument in its Opposition.

The Court agrees with the Defendant. The Lease, the law and the fact of Defendant being the prevailing party in the litigation all support an award of reasonable attorneys' fees to the